

Kommineni Radha vs Kommineni Gangadhar Naidu on 22 February, 2022

HIGH COURT OF ANDHRA PRADESH AT AMARAVATI

THE HON'BLE Mr. JUSTICE AHSANUDDIN AMANULLAH

AND

THE HON'BLE Mr. JUSTICE G. RAMAKRISHNA PRASAD

CIVIL REVISION PETITION No.1092 OF 2021

Kommineni Radha,
W/o.K.Gangaadhar Naidu,
Aged about 33 years,
Occ: Housewife,
R/o. Pedduru Kaspas Matli Village,
Veeraballi Mandal,
Kadapa District. ... Revision Petitioner

Versus

Kommineni Gangadhar Naidu,
S/o. Chinnaiiah,
Aged about 38 years,
Occ: Employee in APSRTC,
R/o. D. No. 53-133, Kothapeta,
Rayachoty Town,
Kadapa District. ... Respondent

Counsel for the petitioner : Mr. P.Badrinath,
Advocate

Counsel for the respondent : -----

ORAL JUDGMENT

Date: 22.02.2022 (Per Hon'ble Mr. Justice Ahsanuddin Amanullah) Heard Mr. P. Badrinath, learned Counsel for the petitioner. Despite valid service of notice to the respondent, neither there is any representation on his behalf nor any counter affidavit has been filed.

2. The present revision is directed against the order dated 23.07.2021 in I.A.(SR) No. 754 of 2021 in H.M.O.P. No. 26 of 2015 on the file of Senior Civil Judge, Rayachoty.

3. The petitioner is the wife of the respondent, who had filed D.O.P. No. 26 of 2015 before the Senior Civil Judge, Rayachoty. Upon contest, the same came to be dismissed by the Senior Civil Judge,

Rayachoty by order dated 04.10.2019. During pendency of the case, the petitioner who was respondent therein has filed an application seeking interim maintenance and the Court had directed for payment of Rs.6,000/- per month for the petitioner and her two minor children at the rate of Rs.2,000/- each. In terms thereof, the amount was being deducted from the salary of the respondent and deposited in the account of the Court. After dismissal of D.O.P. No.26 of 2015 on 04.10.2019, though Rs.6,000/- per month is being deposited in the account of the Court, the same was not being allowed to be withdrawn by the petitioner, for which she filed I.A.(SR) No. 754 of 2021 and the same came to be returned by the impugned order dated 23.07.2021.

4. Learned counsel for the petitioner submitted that the petitioner is in a piquant situation, as on the one hand the petition seeking divorce filed by the respondent has been dismissed, in which there is an order to pay Rs.6,000/- per month which is being deposited till date, but on the other hand due to dismissal of the case, the money so deposited was not being allowed to be withdrawn by the petitioner and when she filed petition for issuance of cheque, the same was returned on the ground that it was not maintainable, as the divorce case itself was dismissed on 04.10.2019. It was submitted that the petitioner has also filed a substantial case, being M.C. No. 20 of 2015, seeking maintenance, which is pending before the Additional Junior Civil Judge, Rayachoty. It was submitted that she has filed an interlocutory application in M. C. No. 20 of 2015, stating the facts and also seeking a direction to receive the money already deposited in the Court of the Senior Civil Judge, Rayachoty. It was submitted that on the said petition also no order is being passed for the avowed reason that the Court of the Additional Junior Civil Judge, Rayachoty before whom M.C. No.20 of 2015 is pending is subordinate to the Court of Senior Civil Judge, Rayachoty.

5. Learned counsel drew the attention of the Court to the Judgment of the erstwhile unified Court of Andhra Pradesh in Civil Revision Petition No. 1573 of 1991, dated 16.01.1995 in the case of Parchuri Rajya Lakshmi vs Parchuri Viswa Sankara Prasad (1995 (1) ALT 628) for the proposition that even after dismissal of the divorce petition, if an interim order has not been formally withdrawn, it is obligatory on the part of the person who has suffered the order to keep paying the interim maintenance and expenses as the application for interim maintenance and expenses under Section 24 of the Hindu Marriage Act, 1955 does not lapse on the termination of the main proceedings if no order is passed therein at the time when the main petition itself is closed.

6. Having regard to the fact that despite receiving notice, the respondent has not chosen to appear, the Court is proceeding on the basis of materials on record and the submissions of learned counsel for the petitioner.

7. Having considered the matter, the Civil Revision Petition stands disposed of in the following terms:

a) The petitioner is held entitled to withdraw whatever amount is being deposited in the account of the Senior Civil Judge, Rayachoty, in terms of order dated 04.10.2019 in D.O.P. No. 26 of 2015.

b) It shall be open to the petitioner to press for passing of any order for interim maintenance in M.C. No.20 of 2015 with regard to prospective payment in favour of herself and her two minor children.

c) It is clarified that till the time there is no specific order interfering with the direction to the respondent to deposit Rs.6,000/- per month, upon the same being deposited, the petitioner shall be entitled to withdraw the amount with rider that the respondent shall not be required to deposit the amount for the same period both before the Senior Civil Judge, Rayachoty and Additional Junior Civil Judge, Rayachoty once any order for the same is passed in M.C. No.20 of 2015.

8. Miscellaneous petitions, if any pending, also stand disposed of. There shall be no order as to costs.

_____ (AHSANUDDIN AMANULLAH, J)
_____ (G. RAMAKRISHNA PRASAD, J) SDP